

[20 & 21 GEO. 5.] *Provisional Order* [Ch. cxxxv.]
(*Marriages*) *Confirmation Act*, 1930.



CHAPTER cxxxv.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924.

A.D. 1930.

[1st August 1930.]

WHEREAS the Right Honourable John Robert Clynes one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 :

5 Edw. 7.
c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament :

14^a & 15
Geo. 5. c. 20.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed.

Order in
schedule
confirmed.

2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1930.

Short title.

A.D. 1930.

SCHEDULE.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts, 1905 and 1924 in the case of marriages solemnised in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability Ministers who have solemnised the marriages to which the Order relates:

And whereas on the fifth day of May one thousand nine hundred and twenty-six a marriage was solemnised in the Broadclose Congregational Church Cheriton Fitzpaine a registered building in the Registration District of Crediton in the County of Devon:

And whereas on the ninth day of December one thousand nine hundred and twenty-nine a marriage was solemnised in the Quinta Congregational Church Quinta Weston Rhyn a registered building in the Registration District of Oswestry in the County of Salop:

And whereas on the twenty-eighth day of July one thousand nine hundred and twenty-eight and on the thirtieth day of March one thousand nine hundred and twenty-nine marriages were solemnised in the Baptist Chapel Tiverton a registered building in the Registration District of Tiverton in the County of Devon:

And whereas between the twenty-fourth day of September one thousand nine hundred and twenty-four and the twenty-third day of January one thousand nine hundred and twenty-nine divers marriages were solemnised in the Congregational Chapel Station Road Mayfield a registered building in the Registration District of Uckfield in the County of East Sussex:

And whereas the aforesaid marriages were solemnised without the presence of any registrar and not in the presence of a duly authorised person and the particulars relating to the said marriages were not registered in the manner provided by the Marriage Act 1898:

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of such marriages and to make certain supplemental incidental and consequential provisions:

Now therefore I the Right Honourable John Robert Clynes one of His Majesty's Principal Secretaries of State in pursuance

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of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

A.D. 1930.
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1. The marriage solemnised on the fifth day of May one thousand nine hundred and twenty-six in the Broadclose Congregational Church Cheriton Fitzpaine in the Registration District of Crediton in the County of Devon the marriage solemnised on the ninth day of December one thousand nine hundred and twenty-nine in the Quinta Congregational Church Quinta Weston Rhyn in the Registration District of Oswestry in the County of Salop the marriages solemnised on the twenty-eighth day of July one thousand nine hundred and twenty-eight and the thirtieth day of March one thousand nine hundred and twenty-nine in the Baptist Chapel Tiverton in the Registration District of Tiverton in the County of Devon and the marriages solemnised between the twenty-fourth day of September one thousand nine hundred and twenty-four and the twenty-third day of January one thousand nine hundred and twenty-nine in the Congregational Chapel Station Road Mayfield in the Registration District of Uckfield in the County of East Sussex shall be and shall be deemed to have been as valid as if the said marriages had been solemnised in the presence of a duly authorised person and as if the particulars relating to the said marriages had been duly registered in the manner provided by the Marriage Act 1898.

2. A Minister who has solemnised any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever by reason of having solemnised the marriages.

3. The registers of the marriages so solemnised or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnised or copies thereof are by law receivable in evidence.

Given under my hand this eighth day of April One thousand nine hundred and thirty.

J. R. CLYNES.

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